

Ministry of Immigration and Integration Criticized in Oversight Case Regarding the Visa Information System

Date: 10-07-2024

Decision

Public Authorities

Criticism

Oversight / Self-initiated Case

Fundamental Principles

The Danish Data Protection Agency has, during an oversight of the Ministry of Immigration and Integration, decided to express criticism of the ministry for, among other things, not conducting ongoing control of its own established deletion deadlines in the national visa information system and for not immediately deleting information when a visa applicant obtains citizenship in an EU member state before the expiration of the deletion deadline.

Journal Number: 2023-421-0015.

Summary

During the oversight, it was noted that the Ministry of Immigration and Integration has established a deletion practice in the national visa information system, where visa cases are automatically deleted as a rule 5 years from, for example, the expiration of a visa, the date of notification of a refusal, etc. However, it was also noted that there is no control to ensure that the automatic deletion practice functions as intended.

The Data Protection Agency assesses that ongoing control of compliance with the data controller's deletion deadlines is a prerequisite for the data controller to demonstrate compliance with the principle of accountability under Article 5, paragraph 2 of the General Data Protection Regulation, in accordance with the principle of storage limitation in Article 5, paragraph 1, letter e.

During the oversight, the Data Protection Agency also found that the Ministry of Immigration and Integration does not immediately delete information when a registered visa applicant obtains citizenship in an EU member state before the expiration of the 5-year period.

According to Article 25, paragraph 1 of the VIS Regulation, the information in a visa application case must be immediately deleted from the visa information system if the visa applicant obtains citizenship in a member state before the expiration of the deletion deadline. However, the Ministry of Immigration and Integration has a practice where the registered individual is instructed to contact the Immigration Service themselves to have their information deleted from the system, instead of the ministry deleting the information on its own initiative.

The Data Protection Agency assesses that this approach does not meet the VIS Regulation's requirements for early deletion as stated in Article 25, paragraph 1.

On this basis, the Data Protection Agency expressed criticism of the Ministry of Immigration and Integration.

Decision

The Data Protection Agency hereby returns to the case regarding the oversight of the Ministry of Immigration and Integration's (UIM) processing of personal data in relation to the Visa Information System (VIS) (Data Protection Agency's journal number: 2023-421-0015).

1. Oversight

By letter dated December 11, 2023, the Data Protection Agency initiated an oversight of UIM regarding the deletion of visa cases in IVR-VIS by sending a series of questions.

UIM responded by letter dated January 23, 2024, to the Data Protection Agency's questions with accompanying attachments.

After reviewing the submitted material, the Data Protection Agency requested, by letter dated April 5, 2024, additional information from UIM regarding the ministry's deletion practice and control of deletion of cases in IVR-VIS.

By letter dated April 25, 2024, UIM submitted supplementary information to the Data Protection Agency.

Based on the submitted information, the Data Protection Agency has noted, among other things, that UIM has a deletion practice in IVR-VIS that is set up to automatically follow the deletion deadlines outlined in the "Guidelines for the Immigration Service, the Immigration Appeals Board, and the Ministry regarding the use of the element 'Notification of Special Reasons'." This means that cases are automatically deleted after 5 years from, for example, the expiration of a visa, the date of notification of a refusal, confirmation, etc. In special cases, visa cases are deleted only after 8 years if they are marked with the element "notification of special reasons," which is also further explained in the submitted material and in the "Guidelines for the Immigration Service, the Immigration Appeals Board, and the Ministry regarding the use of the element 'Notification of Special Reasons'."

The Data Protection Agency has also noted that UIM has not yet conducted control over compliance with deletion deadlines.

Furthermore, the Data Protection Agency has noted that UIM does not have a practice for early deletion when a visa applicant obtains Danish citizenship through naturalization in accordance with Article 25, paragraph 1 of the VIS Regulation. Additionally, it appears from UIM's supplementary statement that a visa holder who obtains Danish citizenship is advised that they can request the deletion of their information in VIS.

Finally, the Data Protection Agency has noted that UIM has not answered the Data Protection Agency's question regarding whether there is communication to the responsible visa authority under Article 25, paragraph 2 of the VIS Regulation.

2. Data Protection Agency's Decision

Based on UIM's statements, the Data Protection Agency finds grounds to conclude:

That UIM does not comply with the principle of accountability in Article 5, paragraph 2 of the General Data Protection Regulation, cf. Article 5, paragraph 1, letter e, as there is no control over the automatic deletion in IVR-VIS.

That UIM does not comply with the requirements of Article 25, paragraph 1 of the VIS Regulation, as there is no immediate deletion of information in IVR-VIS if a registered individual obtains citizenship. At UIM does not comply with the requirements of Article 25(2) of the VIS Regulation, as there is no notification to the responsible visa authority when a registered individual obtains Danish citizenship. Overall, the Data Protection Agency finds grounds to express criticism that UIM has not complied with the requirements of the VIS Regulation.

3. The Legal Basis

The VIS Regulation[1] regulates the exchange of information between member states regarding applications for short-stay visas and decisions made in connection with a visa application. It follows from Recital 17 of the VIS Regulation that the Data Protection Directive applies to member states' processing of information under the VIS Regulation. It follows from Article 94(2) of the Data Protection Regulation[2] that any reference to the Data Protection Directive shall be considered a reference to the Data Protection Regulation.

The storage of information in VIS is regulated in Article 30(1) of the VIS Regulation. It states that information retrieved from VIS may only be stored in national registers when necessary in a specific case in accordance with the relevant legal provisions, including data protection rules.

It follows from Article 5(1)(e) of the Data Protection Regulation that personal data must not be kept for longer than necessary for the purposes for which they are processed. It follows from Article 5(2) of the Data Protection Regulation that the data controller is responsible for and must be able to demonstrate compliance with paragraph 1.

Article 25 of the VIS Regulation regulates the deletion of information prematurely. It follows from paragraph 1 of the provision that information under Article 8(3) and (4) shall be deleted immediately if the visa applicant obtains citizenship in the member state. The information must be deleted by the authority that created the respective applications.

It follows from paragraph 2 of the provision that the member state shall immediately notify the responsible member state(s) if a citizen has obtained citizenship in the member state.

4. The Data Protection Agency's Justification

4.1. Lack of Control over Automatic Deletion

Based on the information provided, the Data Protection Agency can ascertain that UIM does not monitor the deletion of personal data in IVR-VIS. It is the Data Protection Agency's assessment that ongoing monitoring of the data controller's established deletion practices functioning as intended is a prerequisite for the data controller to demonstrate compliance with the principle of storage limitation under Article 5(1)(e) of the Data Protection Regulation.

Thus, it is the Data Protection Agency's assessment that due to the lack of control over the deletion of information in IVR-VIS, it is not possible for UIM to demonstrate that the automatic deletion mechanism complies with Article 5(1)(e) of the Data Protection Regulation and Article 30(1) of the VIS Regulation.

4.2. Failure to Delete under Article 25(1)

Based on the information provided, the Data Protection Agency can ascertain that UIM does not immediately delete information if a registered individual obtains citizenship. It follows from UIM's response to question 3 in the statement of April 25, 2024, that "all who become Danish citizens through naturalization are informed that they can contact the Danish Immigration Service to have their potential data in VIS deleted."

It is the Data Protection Agency's assessment that this approach does not sufficiently meet the conditions for premature deletion.

4.3. Failure to Notify the Responsible Member State(s)

The Data Protection Agency inquired in its consultation letter of April 5, 2024, whether notifications are currently made to the responsible visa authorities. UIM has not answered this question in its statement of April 25, 2024. It follows from UIM's statement of January 23 that a procedure for notification is being developed.

The Data Protection Agency therefore assumes that UIM does not notify the responsible member states if an applicant obtains citizenship. UIM thus does not comply with the requirements of Article 25(2) of the VIS Regulation.

[1] REGULATION (EC) No. 767/2008 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of July 9, 2008, on the Visa Information System (VIS) and the exchange of information between member states on short-stay visas (VIS Regulation)

[2] REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)